



A COMMUNITY OF CHOICE

## Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001  
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### MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council  
From: Seth Lloyd, Senior Planner  
Subject: A Text Amendment amending subsection 6.7.5.b of the Unified Development Code (UDC), changing windows requirements for multifamily residential development  
Date: November 27, 2023

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#### Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 11/27/2023
- Public Services Committee 12/5/2023
- Second reading 12/11/2023
- Public Services Committee 12/19/2023
- Third and final reading 12/21/2023

#### Planning Commission Recommendation:

The Planning Commission heard this item at their November 20, 2023 meeting and voted 3-0 to recommend the Governing Body approve this application.

The Planning Commission originally heard this item in concert with building façade materials requirements, but divided the question and postponed the section regarding windows. This Ordinance reflects the windows section of the original suite of façade amendments.

UDC 6.7.5.b.1 requires openings (defined in this section as transparent windows) on the ground floor of commercial, mixed-use, and urban loft buildings in certain zone districts. The design standards of 6.7 are generally applicable to when development is pulled closer to the street, and the windows requirement is an attempt to help activate the pedestrian space adjacent to the building. The windows are required on 60%-90% of the ground-level façade. Staff has received feedback from developers that the windows portion of the design standards in 6.7 are not necessarily appropriate to multifamily development. The proposed text amendment essentially makes ground-floor residential areas exempt from the windows requirement. Should the Council wish to have some sort of minimum windows requirement, a smaller percentage might be appropriate. For example, UDC 6.6.4.b.2 (multifamily design) requires 15% windows on the entire façade, UDC 6.7.5.b.3 (a part of this section) allows upper level windows to occupy as little as 20% of the façade, and UDC 6.9.4.b (for suburban commercial buildings) allows arcades, awnings, or other such features to count for openings.

The Planning Commission Staff report is attached and has not been changed.

**Attachments:**

1. Ordinance
2. Planning Commission Staff Report

**ORDINANCE NO. \_\_\_\_\_**

**ENTITLED: "AN ORDINANCE AMENDING SUBSECTION 6.7.5.b OF THE UNIFIED DEVELOPMENT CODE (UDC), CHANGING BUILDING FAÇADE DESIGN REQUIREMENTS TO REDUCE REQUIRED WINDOWS ON URBAN LOFT MULTIFAMILY RESIDENTIAL AND MIXED-USE RESIDENTIAL DEVELOPMENT."**

**BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:**

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the Unified Development Code.

Section 2. That on November 20, 2023, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Subsection 6.7.5.b Facade Openings, of Subsection 6.7.5 Building Design, of Section 6.7 Small Scale Commercial and Mixed-use Design Standards, of Article 6 Design Regulations, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section.

- b. Façade Openings. Each facade facing a street shall have openings at street level and upper levels according to the following:
  - 1. Between 60% and 90% of all street-level facades between 2' and 10' above grade shall be transparent with views to the interior of the building. No window starting at a level of greater than 3.5' above the street level should be included in the calculation. Where the interior operation or program of the building warrants screening from the street, a closed display window of at least 2.5 feet deep may be substituted along up to 50% of the linear distance of the façade. Any section of a building with residential dwelling units on the floor that predominately covers the space between 2' and 10' above grade are exempt from this requirement in the areas where the residential units are located.
  - 2. No more than 20' of building frontage shall exist at the street level without window or door openings. On secondary or support streets that are not the primary pedestrian and retail streets of the Center, the Director may approve facades with greater than 20' of building frontage without window and door openings.
  - 3. Upper level openings shall occupy between 20% and 50% of the façade and consist of punched and regularly spaced openings to create a rhythm and pedestrian scale for the façade.
  - 4. Corner buildings with two street frontages may designate one frontage as the primary frontage; however, at least the first 30' of secondary frontage from the corner shall meet the above minimum opening requirements.

Section 4. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 5. This ordinance shall be in full force and effect upon approval and publication.

**FIRST READING:** \_\_\_\_\_

**SECOND READING:** \_\_\_\_\_

**THIRD AND FINAL READING:** \_\_\_\_\_

\_\_\_\_\_  
PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

\_\_\_\_\_  
KRISTINA F. JONES, CITY CLERK

Published: \_\_\_\_\_  
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### PLANNING COMMISSION

NOVEMBER 20, 2023

#### STAFF REPORT

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**REQUEST:** A Text Amendment amending subsection 6.7.5.b changing building façade design requirements for multifamily residential development

**CASE NUMBER:** PLTA-23-2

**PREPARED BY:** Seth Lloyd, Senior Planner, Planning and Development Department

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#### RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code subsection 6.7.5.b as outlined in this staff report and recommended by staff, noting the requests meets the review criteria of UDC 2.4.1.d.

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#### BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

City Staff brought forward a text amendment proposing changing various façade requirements for multifamily buildings. The question was divided and the 'windows' portion of the façade requirements amendment was postponed. This Staff Report is for the 'windows' portion of the multifamily-centric façade amendments.

Multifamily buildings are called 'Urban Lofts' in certain scenarios, applying the design requirements of 6.7 in these cases. Section 6.7 requires display windows on 60% to 90% of street-level façades. This proposed code change proposes removing the display window requirement for Urban Lofts (multifamily) and mixed-use buildings where multifamily on the ground floor. Although this particular amendment was not requested by the Affordable Housing Task Force nor by any specific request by members of the public; however, Staff has run into this issue multiple times with development actions and felt that it was apropos to the request to make façade requirements make more sense for multifamily development.

**PROPOSED AMENDMENTS:****Subsection 6.7.5.b Façade Openings**

(of 6.7.5 Building Design, of 6.7 Small Scale Commercial and Mixed-use Design Standards):

- b. Façade Openings. Each facade facing a street shall have openings at street level and upper levels according to the following:
  1. Between 60% and 90% of all street-level facades between 2' and 10' above grade shall be transparent with views to the interior of the building. No window starting at a level of greater than 3.5' above the street level should be included in the calculation. Where the interior operation or program of the building warrants screening from the street, a closed display window of at least 2.5 feet deep may be substituted along up to 50% of the linear distance of the façade. Any section of a building with residential dwelling units on the floor that predominately covers the space between 2' and 10' above grade are exempt from this requirement in the areas where the residential units are located.
  2. No more than 20' of building frontage shall exist at the street level without window or door openings. On secondary or support streets that are not the primary pedestrian and retail streets of the Center, the Director may approve facades with greater than 20' of building frontage without window and door openings.
  3. Upper level openings shall occupy between 20% and 50% of the façade and consist of punched and regularly spaced openings to create a rhythm and pedestrian scale for the façade.
  4. Corner buildings with two street frontages may designate one frontage as the primary frontage; however, at least the first 30' of secondary frontage from the corner shall meet the above minimum opening requirements.

**REVIEW CRITERIA:**

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

**1. COMPREHENSIVE PLAN:**

*"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."*

The Comprehensive plan encourages the development of workforce housing and housing for Seniors (Principle 2). PlanCheyenne encourages workforce housing to be made of high-quality materials, and with architectural details that are functional and attractive (Policy 2.5.c). Another policy states that design standards should be created to address should be high-quality, but no specific materials or openings requirements are mentioned.

**2. STATE STATUTORY REQUIREMENTS:**

*The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.*

WYO 15-1-601.

Regulations; scope and purpose; uniformity within authorized districts; to follow plan; objectives.

- (a) The governing body of any city or town, by ordinance, may:

- (i) Regulate and restrict the:
    - (A) Height, number of stories and size of buildings and other structures;
    - (B) Percentage of lot that may be occupied;
    - (C) Size of yards, courts and other open spaces;
    - (D) Density of population; and
    - (E) Location and use of buildings, structures and land for trade, industry, residence or other purposes.
  - (ii) Establish setback building lines.
- (b) The governing body may divide the city or town into districts of such number, shape and area as it deems necessary, and within those districts it may regulate and restrict the erection, construction, reconstruction, alteration, repair or use of buildings, structures or land.
- (c) Regulations may differ from one (1) district to another but shall be uniform for each class or kind of buildings within a district.
- (d) All regulations shall be made:
- (i) In accordance with a comprehensive plan and designed to:
    - (A) Lessen congestion in the streets;
    - (B) Secure safety from fire, panic and other dangers;
    - (C) Promote health and general welfare;
    - (D) Provide adequate light and air;
    - (E) Prevent the overcrowding of land;
    - (F) Avoid undue concentration of population; and
    - (G) Facilitate adequate provisions for transportation, water, sewerage, schools, parks and other public requirements.
  - (ii) With reasonable consideration, among other things, of the character of the district and its peculiar suitability for particular uses;
  - (iii) With a view to conserving the value of buildings and encouraging the most appropriate use of land throughout the city or town; and
  - (iv) With consideration given to the historic integrity of certain neighborhoods or districts and a view to preserving, rehabilitating and maintaining historic properties and encouraging compatible uses within the neighborhoods or districts, but no regulation made to carry out the purposes of this paragraph is valid to the extent it constitutes an unconstitutional taking without compensation.

Assessment: This amendment proposes modifying the Unified Development Code to modify sections of code in accordance with the general welfare and character of the community. The regulations and the modifications to the regulations are allowed by state statute.

### **3. HEALTH, SAFETY, AND PUBLIC WELFARE:**

*"The amendment promotes the general health, safety and public welfare."*

This amendment would not adversely impact the general health, safety and public welfare of Cheyenne. While reducing construction costs, the amendment attempts to still assure the aesthetic values of the community are met.

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**CONCLUSION:**

Staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d.

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**STAFF RECOMMENDATION:**

Staff recommends **approval** of the text amendment to the Unified Development Code subsection 6.7.5.b as outlined in this staff report and recommended by staff, noting the requests meets the review criteria of UDC 2.4.1.d.